



CHAPTER cxix.

An Act to confirm certain Provisional Orders of the Local Government Board relating to Kingswood West Ham and the Knighton and Teme the North East Durham and the South Shields Rural and Southwick-on-Wear Joint Hospital Districts. A.D. 1904.
[22nd July 1904.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875 :

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in
schedule
confirmed.

2. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 8) Act 1904. Short title.

A.D. 1904.

SCHEDULE.

URBAN DISTRICT OF KINGSWOOD.

*Kingswood
Order.*

*Provisional Order to enable the Urban District Council of
Kingswood to put in force the Compulsory Clauses of the
Lands Clauses Acts.*

To the Urban District Council of Kingswood ;—

And to all others whom it may concern.

WHEREAS the Urban District Council of Kingswood (herein-after referred to as "the Council") require to purchase and take the lands described in the schedule hereto for the disposal of the sewage of their district and for providing access to such lands :

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect viz.,—

Art. I. The Council shall be empowered to put in force with reference to the lands described in the schedule hereto subject to the continuance of existing public rights of highway (if any) and for the purposes aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them :

Provided that the powers conferred by this Order shall be exercised by the Council only as regards so much of the lands described in the schedule hereto as is coloured green on two plans sealed with Our official seal one of which is deposited in Our office and the other of which shall be deposited in the office of the clerk to the Council at Kingswood within fourteen days after the date of this Order.

Art. II. This Order may be cited as the Kingswood Order 1904.

[4 EDW. 7.] *Local Government Board's* [Ch. cxix.]
Provisional Orders Confirmation (No. 8) Act, 1904.

The SCHEDULE above referred to.

A.D. 1904.

King's Order.

Parish of OLDLAND in the County of GLOUCESTER.

Nos. and Colour on deposited Plans.	Description of Lands.	Owner or reputed Owner.	Lessee or reputed Lessee and Occupier.
1062 (green).	Part of field and public foot- path.	William Henry Quarman	Arthur John Chislett.
1065 (green).	Ditto - - -	Ditto - - -	Ditto.
1068 (green).	Ditto - - -	Ditto - - -	Ditto.
1071 (green).	Field and public footpath	Ditto - - -	Ditto.

Given under the Seal of Office of the Local Government Board this
Twenty-seventh day of April One thousand nine hundred
and four.

(L.S.)

WALTER H. LONG President.

S. B. PROVIS Secretary.

KNIGHTON AND TEME JOINT HOSPITAL DISTRICT.

Provisional Order for forming a United District under Section 279 of the Public Health Act 1875. *Knighton and Teme Order.*

To the Urban District Council of Knighton ; —

To the Rural District Council of Knighton ; —

To the Rural District Council of Teme ; —

And to all others whom it may concern.

WHEREAS the district councils named in column 2 of the Schedule to this Order are the local authorities within the meaning of the Public Health Act 1875 for the districts named in column 1 of that Schedule: ss & 39 Met. c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 279 of the said Act and by any other Statutes in that behalf do hereby order as follows viz.,—

Art. I. In this Order—

Definitions.

- (1) The expression "the appointed day" means the date of the Act of Parliament confirming this Order;
- (2) The expression "the Schedule" means the Schedule to this Order;
- (3) The expression "the Act" means the Public Health Act 1875;

[Ch. cxix.] *Local Government Board's* [4 EDW. 7.]
Provisional Orders Confirmation (No. 8) Act, 1904.

A.D. 1904. <i>Knighton and Teme Order.</i>	(4) The expression "Constituent District" means a district named in column 1 of the Schedule and the expression "Constituent Districts" means all the districts so named; (5) The expression "Constituent Authority" means a district council named in column 2 of the Schedule and the expression "Constituent Authorities" means all the district councils so named; (6) The expression "the Joint Board" means the governing body of the United District to be formed in pursuance of this Order.
Commence- ment of Order.	Art. II. This Order shall come into operation from and after the appointed day.
Formation of district.	Art. III. The Constituent Districts shall be formed into a United District to be called the Knighton and Teme Joint Hospital District for the purposes of the provision maintenance and management for the use of the inhabitants of the Constituent Districts of a hospital or hospitals for the reception of cases of infectious diseases.
Constitution of governing body.	Art. IV. The Joint Board shall consist of one ex-officio and ten elective members and shall be called "The Knighton and Teme Joint Hospital Board."
Ex-officio and elective mem- bers.	Art. V. The ex-officio member shall be the person described in column 3 of the Schedule and the elective members shall be elected by the Constituent Authorities.
Number and qualification of elective members.	Art. VI. The number of members of the Joint Board to be elected by each Constituent Authority shall be that set opposite to the name of the Constituent Authority in column 4 of the Schedule and the said members shall be chosen by each Constituent Authority from among their own members.
Disqualifica- tions for members. 56 & 57 Vict. c. 73.	Art. VII. Such of the provisions of Section 46 of the Local Government Act 1894 as relate to members of councils of districts other than boroughs shall with the necessary modifications apply to members of the Joint Board.
Date of first election.	Art. VIII. The first election of members of the Joint Board shall take place at a meeting of each Constituent Authority to be held within six weeks from the appointed day or within such further time as the Local Government Board may allow and seven days' previous notice in writing of such meeting shall be given or sent to each member of the Constituent Authority by the clerk to that authority.
Notification to Local Govern- ment Board of members first elected.	Art. IX. The clerk to each Constituent Authority shall notify in writing to the Local Government Board within seven days after the first election has taken place the names address and occupation of each of the persons elected by the Constituent Authority as a member of the Joint Board.
Tenure of office of members.	Art. X. An elective member of the Joint Board shall continue in office until the expiration of the period for which he was elected a member of the Joint Board or until he dies or resigns or ceases to be a member of the Constituent Authority as a member of which he was qualified to be elected

or otherwise becomes disqualified or until he becomes an ex-officio member of the Joint Board whichever shall first happen :

A D. 1904.

*Knighton and
Teme Order.*

Provided always that an elective member shall not continue in office for a longer period than three years without re-election and a member who ceases to hold office by reason of the expiration of his period of office or by reason of his resignation or disqualification or ceasing to be a member of the said Constituent Authority shall subject to the provisions of Article VII. of this Order be re-eligible as a member of the Joint Board if at the time of re-election he is qualified to be so re-elected.

Art XI. Any vacancy occurring amongst the elective members of the Joint Board by death resignation disqualification or otherwise shall be filled up by the Constituent Authority in whose representation the vacancy happens at a meeting to be held within six weeks of the occurrence of the vacancy or within such further period as the Local Government Board determine and seven days' previous notice in writing of the said meeting shall be given or sent to each member of the Constituent Authority by the clerk to that authority and the clerk shall forthwith notify in writing to the clerk to the Joint Board the names address and occupation of the person elected to fill the said vacancy.

Supply of
vacancies.

Art. XII.—(1) The time and place of holding the first meeting of the Joint Board shall be fixed by the Local Government Board and the subsequent ordinary meetings of the Joint Board shall be held at such times and places as the Joint Board may appoint and at all meetings of the Joint Board five members shall constitute a quorum.

Meetings.

(2) An extraordinary meeting shall be summoned by the clerk to the Joint Board when a requisition for that purpose is addressed to him by the chairman or any three members of the Joint Board.

(3) The requisition shall be in writing and no business other than that specified in the requisition shall be transacted at such extraordinary meeting.

(4) Notices of all meetings of the Joint Board shall be delivered or sent by post so as to reach the last known place of abode or business in England of each member of the Joint Board three clear days before the day of meeting or at such earlier time as the Joint Board direct.

(5) The Joint Board may appoint committees consisting of members of the Joint Board for the exercise of any powers which in the opinion of the Joint Board can be properly exercised by committees but the acts of every such committee shall unless otherwise directed by the Joint Board be submitted to the Joint Board for approval. Provided that a committee so appointed shall in no case be authorised to borrow money or to issue any precept for contributions or to enter into any contract and any such committee shall be subject to the provisions of Part IV. of the First Schedule to the Local Government Act 1894 so far as they are applicable.

Committees.

Art. XIII. The Joint Board shall at their first meeting or at an adjournment thereof and thereafter as occasion requires appoint a chairman

Appointment
and remunera-
tion of officers.

A.D. 1904. (who shall subject to the provisions of Articles VII. and X. of this Order
Knighton and continue chairman for such period not exceeding three years as may be
Terr Order. determined by the Joint Board at the time of his appointment) a treasurer
and a clerk and they may appoint one or more medical officers who shall be
registered medical practitioners and such other officers and servants as they
think requisite. The Joint Board may pay their treasurer clerk medical
officers and other officers and servants such reasonable remuneration as they
deem expedient and every such treasurer clerk medical officer and other
officer and servant shall be removable by the Joint Board at their pleasure.

Made of ad-
mission into
hospitals.

Art. XIV.—(1) Persons shall be admitted into a hospital provided by
the Joint Board in any of the following modes and not otherwise except
with the consent of the Constituent Authorities viz.,—

- (a) By an order of the Joint Board or of a Constituent Authority :
- (b) By an order of a medical officer of health of a Constituent Authority :
- (c) By an order of a medical officer appointed by the Joint Board :
- (d) By an order of a justice made under the provisions of Section 124
of the Act with the consent required by that section.

(2) If the board of guardians of the poor of the Knighton Union and the
Joint Board agree for the reception into the hospital of persons in the receipt
of relief from that board of guardians any such person may be admitted into
the hospital in the manner and on the terms prescribed in the agreement.

Powers rights
duties &c. of
Joint Board.

Art. XV. For the purposes of this Order the following sections of the
Act the Public Health (Officers) Act 1884 and the Public Health (Members
and Officers) Act 1885 shall apply and the Joint Board shall have exercise
perform and be subject to all the powers rights duties capacities liabilities
and obligations of an Urban District Council under the same sections so far
as the same are applicable viz.,—

Of the Act:—

Sections 122 123 131 and 132 relating to infectious diseases and
hospitals.

Sections 173 and 174 (except sub-section 3) relating to contracts.

Sections 175 176 and 177 relating to purchase sale and letting of lands

Sections 179 to 181 relating to arbitration.

Sections 192 to 197 and Sections 205 and 206 (except so much of
Section 206 as requires the publication in a local newspaper of the
annual report) relating to officers provision of offices and conduct of
business of local authorities.

Sections 245 247 (as amended by the District Auditors Act 1879) 249
and 250 relating to audit.

Sections 251 253 and 254 and Sections 258 to 263 and 265 to 267
and Section 269 as amended by the Summary Jurisdiction Act 1884
relating to legal proceedings.

Section 298 as to costs of Provisional Orders.

Sections 306 to 309 including miscellaneous provisions.

Provisional Orders Confirmation (No. 8) Act, 1904.

Of the Public Health (Officers) Act 1884:—

Section 2.

Of the Public Health (Members and Officers) Act 1885:—

Section 2.

*Knighton and
Teme Order.*

47 & 48 Vict.
c. 74.

48 & 49 Vict.
c. 53.

Art. XVI. The Joint Board shall for the purpose of the sections of the Act with regard to the "Prevention of epidemic diseases" be a local authority so as to enable the Local Government Board by any regulations under those sections to confer powers and to impose duties on the Joint Board and so far as regards any powers so conferred and any duties so imposed but nothing in this Order contained shall prevent the Local Government Board from imposing any duties by any regulations under the said sections on any Constituent Authority or affect the powers of any Constituent Authority so far as the same may be required to be exercised in pursuance of the said regulations.

Power of
Local Govern-
ment Board to
make regula-
tions for pre-
vention of epi-
demic diseases.

Art. XVII. Until a hospital provided by the Joint Board is ready for the reception of patients nothing in this Order shall take away abridge or prejudicially affect any power vested in any Constituent Authority with regard to the provision of a hospital or hospitals for the use of the inhabitants of their district.

Saving hospital
powers of
Constituent
Authorities
till hospital
provided.

Art. XVIII. A copy of Section 132 of the Act shall be exhibited in a conspicuous place at the principal entrance of the hospital or hospitals.

Notice of pro-
visions as to
recovery of cost
of maintenance.

Art. XIX.—(1) All the expenses incurred by the Joint Board shall be defrayed out of a common fund to which shall be paid the sums recovered by the Joint Board from or repaid to the Joint Board by or for patients.

Expenses of
Joint Board.

(2) To the common fund so far as the same is not provided by the afore-said payments each Constituent Authority shall contribute in the proportion which the number of inhabitants in their Constituent District bears to the total number of inhabitants of the Constituent Districts and for the purposes of this Article the number of inhabitants shall in each case be the number according to the returns of the last census prior to the issue of precepts of the Joint Board for contributions from the Constituent Authorities.

Art. XX. The accounts of the Joint Board shall at all reasonable times be open to inspection and transcription without payment by any member of a Constituent Authority or by any officer of a Constituent Authority authorised by them for that purpose.

Inspection of
accounts.

Art. XXI. A copy of the auditor's report and of the abstract of the accounts of the Joint Board when duly audited shall be sent by the Joint Board to each Constituent Authority.

Auditor's
report and
abstract of
accounts.

Art. XXII. If at any time any new district is formed including the whole or any part of a Constituent District or the boundaries of a Constituent District are otherwise altered or a Constituent District is created or included in a municipal borough or any repeal or alteration is made in the law affecting the United District or the Joint Board or a Constituent District

Power of Local
Government
Board to adapt
provisions of
Order on
alterations of
Constituent
Districts.

[Ch. cxix.] *Local Government Board's* [4 EDW. 7.]
Provisional Orders Confirmation (No. 8) Act, 1904.

A.D. 1904. or Constituent Authority in matters touching their relation to the United
Knighton and District or the Joint Board then and in every such case the Local Government
Teme Order. Board may by order to be published as they shall direct make such provision
as to them seems fit for adapting the provisions of this Order to the alteration
so made and to the incidents and consequences thereof and every such order
shall have effect as if the terms thereof were inserted in this Order.

Settlement
of differences. Art. XXIII. In case of difference respecting any matter arising out of
the provisions of this Order the difference except in any case otherwise
herein provided for shall be referred to and be settled by arbitration in
the manner provided by the Act and the provisions of the Act shall with
the necessary modifications apply as if the Joint Board or a Constituent
Authority as the case may be were a party within the meaning of those
provisions.

Short title. Art. XXIV. This Order may be cited as the Knighton and Teme Joint
Hospital Order 1904.

The SCHEDULE above referred to.

1.	2.	3.		4.
Name of District.	Name of District Council.	Ex-officio Member.		Elective Members.
		Number.	Description.	Number.
The Urban District of Knighton.	The Urban District Council of Knighton.	1	The Chairman of the Urban District Council or in the event of his being unwilling to act then the Vice-Chairman of the Urban District Council.	2
The Rural District of Knighton.	The Rural District Council of Knighton.	—	—	5
The Rural District of Teme.	The Rural District Council of Teme.	—	—	3

Given under the Seal of Office of the Local Government Board this
Twenty-fifth day of April One thousand nine hundred and four.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

NORTH EAST DURHAM JOINT SMALL-POX
HOSPITAL DISTRICT.

A.D. 1904.

*Provisional Order for forming a United District under Section 279
of the Public Health Act 1875.*

*North East
Durham
Order.*

To the Mayor Aldermen and Burgesses of the Borough of Jarrow ; —
To the Urban District Council of Felling ; —
To the Urban District Council of Hebburn ; —
To the Urban District Council of Southwick-on-Wear ; —
To the Rural District Council of South Shields ; —
To the Rural District Council of Sunderland ; —
And to all others whom it may concern.

WHEREAS the district councils named in column 2 of the Schedule to this
Order are the local authorities within the meaning of the Public Health Act 1875 for the districts named in column 1 of that Schedule :

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the
powers given to Us by Section 279 of the said Act and by any other
Statutes in that behalf do hereby order as follows viz.,—

Art. I. In this Order—

* Definitions.

- (1) The expression "the appointed day" means the Thirtieth day
of September next after the date of the Act of Parliament
confirming this Order ;
- (2) The expression "the Schedule" means the Schedule to this Order ;
- (3) The expression "the Act" means the Public Health Act 1875 ;
- (4) The expression "Constituent District" means a district named in
column 1 of the Schedule and the expression "Constituent
Districts" means all the districts so named ;
- (5) The expression "Constituent Authority" means a district council
named in column 2 of the Schedule and the expression
"Constituent Authorities" means all the district councils so
named ;
- (6) The expression "the Joint Board" means the governing body of
the United District to be formed in pursuance of this Order.

Art. II. This Order shall come into operation from and after the
appointed day.

Commence-
ment of Order.

Art. III. The Constituent Districts shall be formed into a United
District to be called the North East Durham Joint Small-Pox Hospital
District for the purposes of the provision maintenance and management for
the use of the inhabitants of the Constituent Districts of a hospital or
hospitals for the reception of cases of small-pox.

Formation of
district.

*North East
Durham
Order.*
Constitution
of governing
body.

Art. IV. The Joint Board shall consist of six ex-officio and nine elective members and shall be called "The North East Durham Joint Small-Pox Hospital Board."

Ex-officio
and elective
members.

Art. V. The ex-officio members shall be the persons described in column 3 of the Schedule and the elective members shall be elected by the Constituent Authorities.

Number and
qualification
of elective
members.

Art. VI. The number of members of the Joint Board to be elected by each Constituent Authority shall be that set opposite to the name of the Constituent Authority in column 4 of the Schedule and the said members shall be chosen by each Constituent Authority from among their own members.

Disqualifica-
tions for
members.
56 & 57 Vict.
c. 78.

Art. VII. Such of the provisions of Section 46 of the Local Government Act 1894 as relate to members of councils of districts other than boroughs shall with the necessary modifications apply to members of the Joint Board.

Date of first
election.

Art. VIII. The first election of members of the Joint Board shall take place at a meeting of each Constituent Authority to be held within six weeks from the appointed day or within such further time as the Local Government Board may allow and seven days' previous notice in writing of such meeting shall be given or sent to each member of the Constituent Authority by the clerk to that authority.

Notification to
Local Govern-
ment Board of
members first
elected.

Art. IX. The clerk to each Constituent Authority shall notify in writing to the Local Government Board within seven days after the first election has taken place the names address and occupation of each of the persons elected by the Constituent Authority as a member of the Joint Board.

Tenure of
office of
members.

Art. X. An elective member of the Joint Board shall continue in office until the expiration of the period for which he was elected a member of the Joint Board or until he dies or resigns or ceases to be a member of the Constituent Authority as a member of which he was qualified to be elected or otherwise becomes disqualified or until he becomes an ex-officio member of the Joint Board whichever shall first happen :

Provided always that an elective member shall not continue in office for a longer period than three years without re-election and a member who ceases to hold office by reason of the expiration of his period of office or by reason of his resignation or disqualification or ceasing to be a member of the said Constituent Authority shall subject to the provisions of Article VII. of this Order be re-eligible as a member of the Joint Board if at the time of re-election he is qualified to be so re-elected.

Supply of
vacancies.

Art. XI. Any vacancy occurring amongst the elective members of the Joint Board by death resignation disqualification or otherwise shall be filled up by the Constituent Authority in whose representation the vacancy happens at a meeting to be held within six weeks of the occurrence of the vacancy or within such further period as the Local Government Board determine and seven days' previous notice in writing of the said meeting shall be given or sent to each member of the Constituent Authority by the clerk to that

authority and the clerk shall forthwith notify in writing to the clerk to the Joint Board the names address and occupation of the person elected to fill the said vacancy.

A.D. 1904.

*North East
Durham
Order.*

Art. XII.—(1) The time and place of holding the first meeting of the Joint Board shall be fixed by the Local Government Board and the subsequent ordinary meetings of the Joint Board shall be held at such times and places as the Joint Board may appoint and at all meetings of the Joint Board three members shall constitute a quorum.

Meetings.

(2) An extraordinary meeting shall be summoned by the clerk to the Joint Board when a requisition for that purpose is addressed to him by the chairman or any three members of the Joint Board.

(3) The requisition shall be in writing and no business other than that specified in the requisition shall be transacted at such extraordinary meeting.

(4) Notices of all meetings of the Joint Board shall be delivered or sent by post so as to reach the last known place of abode or business in England of each member of the Joint Board three clear days before the day of meeting or at such earlier time as the Joint Board direct.

(5) The Joint Board may appoint committees consisting of members of the Joint Board for the exercise of any powers which in the opinion of the Joint Board can be properly exercised by committees but the acts of every such committee shall unless otherwise directed by the Joint Board be submitted to the Joint Board for approval. Provided that a committee so appointed shall in no case be authorised to borrow money or to issue any precept for contributions or to enter into any contract and any such committee shall be subject to the provisions of Part IV. of the First Schedule to the Local Government Act 1894 so far as they are applicable.

Committees.

Art. XIII. The Joint Board shall at their first meeting or at an adjournment thereof and thereafter as occasion requires appoint a chairman (who shall subject to the provisions of Articles VII. and X. of this Order continue chairman for such period not exceeding three years as may be determined by the Joint Board at the time of his appointment) a treasurer and a clerk and they may appoint one or more medical officers who shall be registered medical practitioners and such other officers and servants as they think requisite. The Joint Board may pay their treasurer clerk medical officers and other officers and servants such reasonable remuneration as they deem expedient and every such treasurer clerk medical officer and other officer and servant shall be removable by the Joint Board at their pleasure.

Appointment
and remunera-
tion of officers.

Art. XIV.—(1) Persons shall be admitted into a hospital provided by the Joint Board in any of the following modes and not otherwise except with the consent of the Constituent Authorities viz.,—

Mode of
admission into
hospitals.

(a) By an order of the Joint Board or of a Constituent Authority :

(b) By an order of a medical officer of health of a Constituent Authority :

(c) By an order of a medical officer appointed by the Joint Board :

(d) By an order of a justice made under the provisions of Section 124 of the Act with the consent required by that section.

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Provisional Orders Confirmation (No. 8) Act, 1904.

A.D. 1904.
*North East
Durham
Order.*

(2) If the board of guardians of the poor of the Gateshead Union of the South Shields Union or of the Sunderland Union and the Joint Board agree for the reception into the hospital of persons in the receipt of relief from that board of guardians any such person may be admitted into the hospital in the manner and on the terms prescribed in the agreement.

Powers rights
duties &c. of
Joint Board.

Art. XV. For the purposes of this Order the following sections of the Act the Public Health (Officers) Act 1884 and the Public Health (Members and Officers) Act 1885 shall apply and the Joint Board shall have exercise perform and be subject to all the powers rights duties capacities liabilities and obligations of an Urban District Council under the same sections so far as the same are applicable viz.,—

Of the Act:—

Sections 122 123 131 and 132 relating to infectious diseases and hospitals.

Sections 173 and 174 (except sub-section 3) relating to contracts.

Sections 175 176 and 177 relating to purchase sale and letting of lands.

Sections 179 to 181 relating to arbitration.

Sections 192 to 197 and Sections 205 and 206 (except so much of Section 206 as requires the publication in a local newspaper of the annual report) relating to officers provision of offices and conduct of business of local authorities.

Sections 245 247 (as amended by the District Auditors Act 1879) 249 and 250 relating to audit.

Sections 251 253 and 254 and Sections 258 to 263 and 265 to 267 and Section 269 as amended by the Summary Jurisdiction Act 1884 relating to legal proceedings.

Section 298 as to costs of Provisional Orders.

Sections 306 to 309 including miscellaneous provisions.

47 & 48 Vict.
c. 74.

Of the Public Health (Officers) Act 1884:—

Section 2.

48 & 49 Vict.
c. 53.

Of the Public Health (Members and Officers) Act 1885:—

Section 2.

Power of
Local Govern-
ment Board to
make regula-
tions for pre-
vention of epi-
demic diseases.

Art. XVI. The Joint Board shall for the purpose of the sections of the Act with regard to the "Prevention of epidemic diseases" be a local authority so as to enable the Local Government Board by any regulations under those sections to confer powers and to impose duties on the Joint Board and so far as regards any powers so conferred and any duties so imposed but nothing in this Order contained shall prevent the Local Government Board from imposing any duties by any regulations under the said sections on any Constituent Authority or affect the powers of any Constituent Authority so far as the same may be required to be exercised in pursuance of the said regulations.

A.D. 1904.

Art. XVII. Until a hospital provided by the Joint Board is ready for the reception of patients suffering from small-pox nothing in this Order shall take away abridge or prejudicially affect any power vested in any Constituent Authority with regard to the provision of a hospital or hospitals for the reception of cases of small-pox for the use of the inhabitants of their district.

*North East
Durham
Order.*

Saving hospital powers of Constituent Authorities till hospital provided.

Art. XVIII. A copy of Section 132 of the Act shall be exhibited in a conspicuous place at the principal entrance of the hospital or hospitals.

Notice of provisions as to recovery of cost of maintenance.

Art. XIX.—(1) All the expenses incurred by the Joint Board shall be defrayed out of a common fund to which shall be paid the sums received from the Constituent Authorities in respect of the cost of maintenance of patients as herein-after provided and the sums recovered by the Joint Board from or repaid to the Joint Board by or for patients.

Expenses of Joint Board.

(2) To the common fund so far as the same is not provided by the aforesaid payments the Constituent Authorities shall contribute in the proportions determined by the amounts which at the time of issuing the precepts of the Joint Board for contributions would be raised by a rate in the nature of a general district rate in each Urban District and by a rate to defray special expenses in each Rural District at an equal rate in the pound.

(3) The contributions of each Rural District Council towards such common fund and any expenditure incurred by each Rural District Council as a Constituent Authority in respect of the cost of maintenance of patients shall be deemed to be special expenses within the meaning of the Act chargeable upon the contributory places in the Rural District and shall be raised accordingly.

Art. XX.—(1) The cost of maintenance of patients shall be ascertained and paid as follows viz.,—

Calculation and payment of cost of maintenance of patients.

(a) Within twenty-one days after the Thirty-first day of March and the Thirtieth day of September in each year the Joint Board shall ascertain the average daily cost per patient of the maintenance of patients who have been in the hospital during the previous half-year :

(b) The cost of maintenance of patients shall include all the expenses incurred in and about the maintenance and care of the patients in the hospital and in and about their medical treatment (except so far as the same shall be included in the salaries of the medical officer or medical officers and permanent nurse or nurses) and in and about the clothing conveyance to and from the hospital burials and funerals of patients and shall also include during any day in which a patient or patients may have been in the hospital the remuneration and rations of temporary nurses but shall not include the cost of the repairs to the hospital or to the fittings and furniture thereof or the salaries remuneration or rations of the officers or servants other than temporary nurses.

[Ch. cxix.] *Local Government Board's* [4 EDW. 7.]
Provisional Orders Confirmation (No. 8) Act, 1904.

A.D. 1904.

— — —
*North East
Durham
Order.*

(2) The clerk to the Joint Board shall within twenty-eight days after the Thirty-first day of March and the Thirtieth day of September in each year transmit to the clerk to each Constituent Authority an account showing in respect of the patients received into the hospital from the district of such authority after deducting any sums recovered by the Joint Board from or repaid to the Joint Board by or for those patients—

- (a) the name of each patient ;
- (b) the number of days during such half-year each patient has remained in the hospital ; and
- (c) the amount (calculated according to the daily average ascertained as aforesaid) due from the Constituent Authority.

(3) The amount shown by the said account to be due shall be paid by the Constituent Authority from whose district the said patients have been received into the hospital and shall be included in the precepts which the Joint Board issue to the Constituent Authorities respectively under Section 284 of the Act stating the sums to be contributed by the Constituent Authorities towards the common fund of the district and in case of default shall be recovered in like manner as the sums to be contributed towards the said common fund.

Inspection of
accounts.

Art. XXI. The accounts of the Joint Board shall at all reasonable times be open to inspection and transcription without payment by any member of a Constituent Authority or by any officer of a Constituent Authority authorised by them for that purpose.

Auditor's
report and
abstract of
accounts.

Art. XXII. A copy of the auditor's report and of the abstract of the accounts of the Joint Board when duly audited shall be sent by the Joint Board to each Constituent Authority.

Power of Local
Government
Board to adapt
provisions of
Order on
alterations of
Constituent
Districts.

Art. XXIII. If at any time any new district is formed including the whole or any part of a Constituent District or the boundaries of a Constituent District are otherwise altered or a Constituent District is created or included in a municipal borough or any repeal or alteration is made in the law affecting the United District or the Joint Board or a Constituent District or Constituent Authority in matters touching their relation to the United District or the Joint Board then and in every such case the Local Government Board may by order to be published as they shall direct make such provision as to them seems fit for adapting the provisions of this Order to the alteration so made and to the incidents and consequences thereof and every such order shall have effect as if the terms thereof were inserted in this Order.

Settlement of
differences.

Art. XXIV. In case of difference respecting any matter arising out of the provisions of this Order the difference except in any case otherwise herein provided for shall be referred to and be settled by arbitration in the manner provided by the Act and the provisions of the Act shall with the necessary modifications apply as if the Joint Board or a Constituent Authority as the case may be were a party within the meaning of those provisions.

Art. XXV. This Order may be cited as the North East Durham Joint Small-pox Hospital Order 1904.

The SCHEDULE above referred to.

1. Name of District.	2. Name of District Council.	3. Ex-officio Members.		4. Elective Members.
		Number.	Description.	Number.
The Borough of Jarrow.	The Mayor Aldermen and Burgesses of the Borough of Jarrow acting by the Council.	1	The Chairman for the time being of the Sanitary Committee of the Corporation of Jarrow.	2
The Urban District of Felling.	The Urban District Council of Felling.	1	The Chairman of the Urban District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Vice-Chairman of the Urban District Council.	1
The Urban District of Hebburn.	The Urban District Council of Hebburn.	1	The Chairman of the Urban District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Vice-Chairman of the Urban District Council.	1
The Urban District of Southwick-on-Wear.	The Urban District Council of Southwick-on-Wear.	1	The Chairman of the Urban District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Vice-Chairman of the Urban District Council.	1
The Rural District of South Shields.	The Rural District Council of South Shields.	1	The Chairman of the Rural District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Vice-Chairman of the Rural District Council.	2
The Rural District of Sunderland.	The Rural District Council of Sunderland.	1	The Chairman of the Rural District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Vice-Chairman of the Rural District Council.	2

Given under the Seal of Office of the Local Government Board this
Twenty-eighth day of April One thousand nine hundred and
four.

(L.S.)

WALTER H. LONG President,
S. B. PROVIS Secretary.

[Ch. cxix.] *Local Government Board's* [4 EDW. 7.]
Provisional Orders Confirmation (No. 8) Act, 1904.

A.D. 1904. **SOUTH SHIELDS RURAL AND SOUTHWICK-ON-WEAR
 JOINT HOSPITAL DISTRICT.**

*South Shields
 and
 Southwick-on-
 Wear Order.*

Provisional Order for altering a Confirming Act.

To the South Shields Rural and Southwick-on-Wear Joint Hospital Board ; —

To the Urban District Council of Southwick-on-Wear ; —

To the Rural District Council of South Shields ; —

And to all others whom it may concern.

3 Edw. 7.
 c. lxiv.

WHEREAS by virtue of the South Shields Rural and Southwick-on-Wear Joint Hospital Order 1903 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 11) Act 1903 (which Order and Act are herein-after respectively referred to as "the Order" and "the Confirming Act") the Urban District of Southwick-on-Wear and the Rural District of South Shields (such Urban District and Rural District being herein-after referred to as "the Constituent Districts") constitute a United District called the South Shields Rural and Southwick-on-Wear Joint Hospital District (herein-after referred to as "the United District") of which the governing body is the South Shields Rural and Southwick-on-Wear Joint Hospital Board (herein-after referred to as "the Joint Board") and the United District and the Joint Board are subject to the provisions and regulations contained in the Order and the Confirming Act ;

And whereas by the Order the purposes for which the United District was formed are defined to be the provision maintenance and management for the use of the inhabitants of the Constituent Districts of a hospital or hospitals for the reception of cases of infectious diseases and it is expedient to make other provision with respect to the purposes for which the United District shall be deemed to have been formed and to the purposes of the constitution of the Joint Board :

38 & 39 Vict.
 c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 297 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Confirming Act so far as it relates to the Order shall be altered as herein-after provided :—

Art. I. From and after the Twenty-ninth day of September next following the date of the confirmation of this Order the Order shall have effect as if the provision maintenance and management for the use of the inhabitants of the Constituent Districts of a hospital or hospitals for the reception of cases of small-pox were thereby in terms expressly excluded from the purposes for which the United District has been formed from the purposes of the constitution of the Joint Board and from the purposes to which the provisions or regulations contained in the Order relate and the Order shall accordingly thenceforth cease to apply to small-pox as an infectious disease within the meaning or operation of the said provisions or regulations.

Art. II. This Order may be cited as the South Shields Rural and Southwick-on-Wear Joint Hospital Order 1904 and the Order and this Order may be cited together as the South Shields Rural and Southwick-on-Wear Joint Hospital Orders 1903 and 1904.

A.D. 1904.
—
*South Shields
and
Southwick-on-
Wear Order.*

Given under the Seal of Office of the Local Government Board this
Twenty-eighth day of April One thousand nine hundred
and four.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

BOROUGH OF WEST HAM.

*Provisional Order to enable the Urban Sanitary Authority for the
Borough of West Ham to put in force the Compulsory Clauses
of the Lands Clauses Acts.*

*West Ham
Order.*

To the Mayor Aldermen and Burgesses of the Borough of West
Ham ;—

And to all others whom it may concern.

WHEREAS the Mayor Aldermen and Burgesses of the Borough of West Ham acting by the council as the Urban Sanitary Authority for that Borough (herein-after referred to as "the Corporation") require to purchase and take the lands situate in the Borough and described in the schedule hereto for the purpose of widening opening enlarging or otherwise improving the street called New Barn Street Plaistow :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect viz.,—

38 & 39 Viet.
c. 55.

Art. I. The Corporation shall be empowered to put in force with reference to the lands described in the schedule hereto subject to the continuance of existing public rights of highway (if any) and for the purpose aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Art. II. This Order may be cited as the West Ham Order 1904.

[Ch. cxix.] *Local Government Board's* [4 EDW. 7.]
Provisional Orders Confirmation (No. 8) Act, 1904.

A.D. 1904.

West Ham.
Order.

The SCHEDULE above referred to.

Borough of WEST HAM.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
1	Smithy and piece of land open to street.	Mark Liell Matthew Charles Liell.	Charles Brooks -	Charles Brooks.
2	Yard stables coach-house walls gates and outbuildings.	Ditto - -	- - -	William White.
3	Dwelling-house forecourt fence gate outbuildings and advertisement board.	Ditto - -	- - -	Ditto.
4	Coach-house with loft over yard fences entrance gateway and gate.	The Trustees of the the Will of Sir John Henry Pelly Baronet deceased viz. Herbert Cecil Pelly and Leonard Pelly and Sir Harold Pelly Baronet tenant for life the Lords of the Manor of East-West Ham Emma Liell copyholder.	- - -	Victor Lupson.
5	Cottage forecourt fence gate yard and outbuildings.	Ditto - -	- - -	Jane Crickett.
6	Ditto - -	Ditto - -	- - -	Joseph Tull.
7	Ditto - -	Ditto - -	- - -	Frederick Buick.
8	Ditto - -	Ditto - -	- - -	Robert Lock.
9	Ditto - -	Ditto - -	- - -	Thomas Tull.
10	Ditto - -	Ditto - -	- - -	George Downs.
11	Yard coach-house with loft over fences entrance gateway and gates.	Ditto - -	- - -	William Edwards.
16	Dwelling-house gates yard walls and outbuildings.	Mary Mears - -	- - -	Charles Hunt.

Given under the Seal of Office of the Local Government Board this
Twenty-eighth day of April One thousand nine hundred and
four.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

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